

**MALDIVES****WHOLESALE FIT RATE AGREEMENT****BETWEEN**

Mr. Aarish Khan  
 Chief Commercial Officer  
 TBO Tek Limited (Island Hopper)  
 E-78 South Extension Part- I  
 New Delhi – 110049  
 India  
 rates.islandhopper@travelboutiqueonline.com

**AND**

Hard Rock Hotel Maldives  
 Dream Islands Development 2 Private Limited  
 #02-01, Millenia Tower,  
 10 Ameer Ahmed Magu,  
 Male' 20026, Republic of Maldives  
 GST TIN: **1086554GST002**

The following is a confirmation of our agreement listing terms and conditions, which are the basis of our cooperation. The Property prescribes to the issuance of rates based on a commitment of volume by the Key Account. The Property expects a minimum of **300 room nights** within the validity of contract. Based on actual room nights at the end of such validity of contract, the Property reserves the right to review future negotiated rates, allocation of rooms (where applicable) or offer a 10% commission on its Best Available Rates before service charge and Taxes.

The following rates, terms and conditions shall apply between the Property and the Key Account and may not be varied without the prior written agreement of the Property, except as provided for expressly herein.

**APPLICABLE FOR ALL MARKETS**

The Room Rates and Meal Rates referred to below shall be valid from **01 May 2027 through 30 April 2028**.

**ROOM RATES [CURRENCY: USD]**

| SEASONALITY | DATES                                                                |
|-------------|----------------------------------------------------------------------|
| SHOULDER    | 01 May 2027 - 30 September 2027                                      |
| HIGH        | 01 October 2027 - 25 December 2027 / 11 January 2028 - 30 April 2028 |
| PEAK        | 26 December 2027 - 10 January 2028                                   |

| ROOM TYPES & RATES                                                |          |       |       |
|-------------------------------------------------------------------|----------|-------|-------|
| ROOM TYPES                                                        | SHOULDER | HIGH  | PEAK  |
| Silver Sky Studio                                                 | 545      | 685   | 1,150 |
| Silver Beach Studio                                               | 600      | 735   | 1,200 |
| Silver Family Suite (Duplex, 2-Bedroom, bunk beds 2nd floor)      | 1,150    | 1,650 | 2,410 |
| Silver Family Pool Suite (Duplex, 2-Bedroom, bunk beds 2nd floor) | 1,350    | 1,950 | 2,810 |
| Gold Beach Villa                                                  | 820      | 1,040 | 1,465 |
| Gold Beach Pool Villa                                             | 1,020    | 1,390 | 1,855 |
| Platinum Overwater Villa                                          | 950      | 1,160 | 1,615 |
| Platinum Overwater Pool Villa                                     | 1,100    | 1,510 | 2,015 |
| Diamond Overwater Pool Villa                                      | 1,150    | 1,595 | 2,110 |
| Rock Royalty Overwater Pool Villa (2-Bedroom)                     | 2,975    | 3,135 | 3,585 |
| Rock Star Villa (2-Bedroom)                                       | 5,090    | 6,820 | 8,460 |
| Extra Person Supplement                                           | 140      |       |       |

- Room rates are quoted in US Dollars (USD), per room per night basis, inclusive of prevailing tax, 10% service charge, 17% TGST, Green Tax for two (2) people (rooms and villas) and for four (4) people (Two Bedroom).
- Green Tax does not apply to children up to 1.99 years old.
- Children up to 11.99 years old stay for free in the existing sofa bed in the room/villa. Green Tax of \$12 per person per night is applicable for children from 2 to 11.99 years old.
- Children 12 years old and above shall be considered adults for the purposes of all reservations and payment.
- Additional Adult in Room: Supplement \$140 per person per night (bed, breakfast and Green Tax included)
- Following year's rates may be loaded with a 5% increase across all room types and seasons until the new contract is released, which is expected between March and April 2027. These rates will apply to bookings with stay dates from 01 May 2028 to 30 April 2029
- Rates are net and non-commissionable. In the event of changes to government taxes (+/-), rates will be adjusted according to reflect any changes, a new rate sheet will be distributed.
- All bookings must be prepaid as per deposit policy unless credit facilities have been established in advance.
- Peak Season: Minimum 4-night stay is required during peak season. NO checkout allowed on 30-31 December.
- Rates apply for transient booking, leisure FIT only, up to 9 rooms only. Room reservations of 10 or more are subject to group rates, and are contracted separately to this agreement.



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- These transient FIT rates are not applicable for Group Tours, Tour Series, Corporate Transient, Group Reservations, conferences, Meetings or Incentive Groups, cannot apply for the group booking, contact our Event Sales Team for best group rate.
- Rock Royalty Overwater Pool Villa and Rock Star Villa is excluded from free sale. The categories are sold on request only and not part of free sale.

### BENEFITS

- The above rates inclusive of breakfast for two (2) people (rooms and villas) and for four (4) people (Two Bedroom).
- Complimentary daily two (2) bottles of Water per villa.
- Complimentary in-villa tea and Nespresso machine facilities.
- Unlimited Free Wi-Fi throughout the resort including villas.
- Weekly Sundown Ritual with complimentary drinks, subject to weather condition.
- Complimentary use of snorkeling fins, mask, snorkel with carry bag, single & double kayak, two-person & four-person paddle boats.
- Complimentary use of shared bicycles during the stay available at Hard Rock Hotel Maldives.
- Complimentary access to Roxity kids club and Teens spirit and scheduled activities at Hard Rock Hotel Maldives.
- The Sound of Your Stay music amenities - a private 10-track playlist, access to fantastic Fender guitars, and a Crosley turntable with a curated collection of 10 iconic records.
- Complimentary activities available; Play on Air, Land and Water, Hard Rock's signature Yoga program ROCK OM®, Brazilian Jiu Jitsu, Self-Defense & Kick Boxing and introduction to aerial arts classes with our instructors.
- Parents are required to sign a disclaimer to accommodate children under the age of 12-years in all overwater villa categories.
- Please note all rates committed to your Company are confidential and should not be published at any time or disclosed to a third party for any reason of purpose.
- The above rates should not be published on an electronics distribution system (online bed bank, website, GDS, etc.) by Wholesaler or any other third party. The Wholesaler agrees to mark up the above rates by minimum 25% when selling these rates. These should not be published on a sell alone basis but sold as a package.

### TRANSFER

| Transfers                                                                                                                                                                                                                        | Adult | Child Age<br>6 – 11.99 | Child Age<br>0 - 5.99 |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------|------------------------|-----------------------|
| <b>Shared return scheduled speedboat service</b><br>Duration of trip is 15 minutes from Velana International Airport. Upon arrival, guests will be met by our airport representatives and will be escorted directly to the boat. | 160   | 80                     | 0                     |
| <i>Note: Private hire transfers are subject to availability and rates on request, contact our Reservations team for full details. Transfer rates cannot be marked up.</i>                                                        |       |                        |                       |

### RESERVATIONS & FINANCE CONTACT

|                                  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
|----------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Reservations</b>              | +960 6651400, <a href="mailto:rsvn@hrhmaldives.com">rsvn@hrhmaldives.com</a>                                                                                                                                                                                                                                                                                                                                                                                       |
| <b>Reservations Office Hours</b> | <ul style="list-style-type: none"> <li>Our reservations office will be open from 0800hrs – 2200hrs daily (local time Maldives), requests after 2200hrs will be attended by the next day.</li> <li>For availability, please refer the availability charts that we distribute as our contracts are free sale (sell and report), you will only need to check availability from Reservations if the availability chart is on <b>OR (On Request)</b> status.</li> </ul> |
| <b>Finance</b>                   | <ul style="list-style-type: none"> <li>Direct: +960 665-1400 Ext 6205, Email ID: <a href="mailto:accounts.r@hrhmaldives.com">accounts.r@hrhmaldives.com</a></li> </ul>                                                                                                                                                                                                                                                                                             |

### DIAMOND OVERWATER POOL VILLA PRIVILEGES

Only guests who stay in the **Diamond Overwater Pool Villa** will be entitled to enjoy the following privileges:

- ☒ In Villa check-in/check-out upon request
- ☒ Late check-out based on availability
- ☒ Upgraded room amenities
- ☒ One Hard Rock Hotel Maldives pin
- ☒ Complimentary daily afternoon snack

### ROCK ROYALTY & ROCK STAR PRIVILEGES

Only guests who stay in the **Royalty Overwater Pool Villa (2-Bedroom)** and **Rock Star Villa (2-Bedroom)** will be entitled to enjoy the following privileges:

- ☒ In Villa check-in/check-out upon request
- ☒ Late check-out based on availability
- ☒ Dedicated butler/concierge service
- ☒ Upgraded room amenities
- ☒ One Hard Rock Hotel Maldives pin
- ☒ Complimentary daily afternoon snacks



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## ROOM TYPES & ROOM RATES & EXTRA PERSON SUPPLEMENT WITH EBO 35% [BOOK BY 31 JULY 2027] / [STAYS FROM 01 MAY 2027 – 31 OCTOBER 2027]

| ROOM TYPES                                                        | SHOULDER | HIGH | PEAK |
|-------------------------------------------------------------------|----------|------|------|
| Silver Sky Studio                                                 | 354      | N/A  | N/A  |
| Silver Beach Studio                                               | 390      | N/A  | N/A  |
| Silver Family Suite (Duplex, 2-Bedroom, bunk beds 2nd floor)      | 748      | N/A  | N/A  |
| Silver Family Pool Suite (Duplex, 2-Bedroom, bunk beds 2nd floor) | 878      | N/A  | N/A  |
| Gold Beach Villa                                                  | 533      | N/A  | N/A  |
| Gold Beach Pool Villa                                             | 663      | N/A  | N/A  |
| Platinum Overwater Villa                                          | 618      | N/A  | N/A  |
| Platinum Overwater Pool Villa                                     | 715      | N/A  | N/A  |
| Diamond Overwater Pool Villa                                      | 748      | N/A  | N/A  |
| Rock Royalty Overwater Pool Villa (2-Bedroom)                     | 1,934    | N/A  | N/A  |
| Rock Star Villa (2-Bedroom)                                       | 3,309    | N/A  | N/A  |
| Extra Person Supplement                                           | 91       | N/A  | N/A  |

## ROOM TYPES & ROOM RATES & EXTRA PERSON SUPPLEMENT WITH EBO 30% [BOOK BY 31 JULY 2027] / [STAYS FROM 01 NOVEMBER 2027 - 25 DECEMBER 2027]

| ROOM TYPES                                                        | SHOULDER | HIGH  | PEAK |
|-------------------------------------------------------------------|----------|-------|------|
| Silver Sky Studio                                                 | N/A      | 480   | N/A  |
| Silver Beach Studio                                               | N/A      | 515   | N/A  |
| Silver Family Suite (Duplex, 2-Bedroom, bunk beds 2nd floor)      | N/A      | 1,155 | N/A  |
| Silver Family Pool Suite (Duplex, 2-Bedroom, bunk beds 2nd floor) | N/A      | 1,365 | N/A  |
| Gold Beach Villa                                                  | N/A      | 728   | N/A  |
| Gold Beach Pool Villa                                             | N/A      | 973   | N/A  |
| Platinum Overwater Villa                                          | N/A      | 812   | N/A  |
| Platinum Overwater Pool Villa                                     | N/A      | 1,057 | N/A  |
| Diamond Overwater Pool Villa                                      | N/A      | 1,117 | N/A  |
| Rock Royalty Overwater Pool Villa (2-Bedroom)                     | N/A      | 2,195 | N/A  |
| Rock Star Villa (2-Bedroom)                                       | N/A      | 4,774 | N/A  |
| Extra Person Supplement                                           | N/A      | 98    | N/A  |

## ROOM TYPES & ROOM RATES & EXTRA PERSON SUPPLEMENT WITH EBO 20% [BOOK BY 30 SEPTEMBER 2027] / [STAYS FROM 26 DECEMBER 2027 - 10 JANUARY 2028]

| ROOM TYPES                                                        | SHOULDER | HIGH | PEAK  |
|-------------------------------------------------------------------|----------|------|-------|
| Silver Sky Studio                                                 | N/A      | N/A  | 920   |
| Silver Beach Studio                                               | N/A      | N/A  | 960   |
| Silver Family Suite (Duplex, 2-Bedroom, bunk beds 2nd floor)      | N/A      | N/A  | 1,928 |
| Silver Family Pool Suite (Duplex, 2-Bedroom, bunk beds 2nd floor) | N/A      | N/A  | 2,248 |
| Gold Beach Villa                                                  | N/A      | N/A  | 1,172 |
| Gold Beach Pool Villa                                             | N/A      | N/A  | 1,484 |
| Platinum Overwater Villa                                          | N/A      | N/A  | 1,292 |
| Platinum Overwater Pool Villa                                     | N/A      | N/A  | 1,612 |
| Diamond Overwater Pool Villa                                      | N/A      | N/A  | 1,688 |
| Rock Royalty Overwater Pool Villa (2-Bedroom)                     | N/A      | N/A  | 2,868 |
| Rock Star Villa (2-Bedroom)                                       | N/A      | N/A  | 6,768 |
| Extra Person Supplement                                           | N/A      | N/A  | 112   |

## ROOM TYPES & ROOM RATES & EXTRA PERSON SUPPLEMENT WITH EBO 20% [BOOK BY 30 SEPTEMBER 2027] / [STAYS FROM 11 JANUARY 2028 - 30 APRIL 2028]

| ROOM TYPES                                                        | SHOULDER | HIGH  | PEAK |
|-------------------------------------------------------------------|----------|-------|------|
| Silver Sky Studio                                                 | N/A      | 548   | N/A  |
| Silver Beach Studio                                               | N/A      | 588   | N/A  |
| Silver Family Suite (Duplex, 2-Bedroom, bunk beds 2nd floor)      | N/A      | 1,320 | N/A  |
| Silver Family Pool Suite (Duplex, 2-Bedroom, bunk beds 2nd floor) | N/A      | 1,560 | N/A  |
| Gold Beach Villa                                                  | N/A      | 832   | N/A  |
| Gold Beach Pool Villa                                             | N/A      | 1,112 | N/A  |
| Platinum Overwater Villa                                          | N/A      | 928   | N/A  |
| Platinum Overwater Pool Villa                                     | N/A      | 1,208 | N/A  |
| Diamond Overwater Pool Villa                                      | N/A      | 1,276 | N/A  |
| Rock Royalty Overwater Pool Villa (2-Bedroom)                     | N/A      | 2,508 | N/A  |
| Rock Star Villa (2-Bedroom)                                       | N/A      | 5,456 | N/A  |
| Extra Person Supplement                                           | N/A      | 112   | N/A  |



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### EAT

| MEAL PLAN                                                                                                                                                                                                                      | HALF BOARD | FULL BOARD | FULL BOARD PLUS | ALL INCLUSIVE | PREMIUM ALL INCLUSIVE |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------|------------|-----------------|---------------|-----------------------|
|                                                                                                                                                                                                                                | US\$105    | US\$160    | US\$185         | US\$210       | US\$299               |
| Breakfast (buffet / à la carte*)                                                                                                                                                                                               | ✓          | ✓          | ✓               | ✓             | ✓                     |
| Lunch (buffet / à la carte*)                                                                                                                                                                                                   | -          | ✓          | ✓               | ✓             | ✓                     |
| Dinner (buffet / à la carte* / dining credit)                                                                                                                                                                                  | ✓          | ✓          | ✓               | ✓             | ✓                     |
| House still and sparkling water during the meals                                                                                                                                                                               | ✓          | ✓          | ✓               | ✓             | ✓                     |
| Non-alcoholic beverages by glass (operating hours)                                                                                                                                                                             | -          | -          | ✓               | ✓             | ✓                     |
| Standard alcoholic beverages by glass (operating hours)                                                                                                                                                                        | -          | -          | -               | ✓             | ✓                     |
| A wide selection of premium beverages served by the glass (soft drinks, tea, coffee, beers, wines, premium liquor brands, fresh juices, cocktails and liquors) as per the scheduled opening hours of the restaurants and bars. | -          | -          | -               | -             | ✓                     |
| 30% discount of In-Villa Dining, food and beverage order.                                                                                                                                                                      | -          | -          | -               | -             | ✓                     |
| 30% discount on Spa Treatment at Rock Spa.                                                                                                                                                                                     | -          | -          | -               | -             | ✓                     |

| MEAL        | BREAKFAST       | LUNCH & DINNER                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
|-------------|-----------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Restaurants | Sessions - ONLY | <p><b>Hard Rock Hotel Maldives:</b></p> <ul style="list-style-type: none"> <li>+ Sessions (3-dishes from a la carte menu, 1 appetizer, 1 main course and 1 dessert)</li> <li>+ The Elephant and The Butterfly (3-dishes from a la carte menu, 1 appetizer, 1 main course and 1 dessert)</li> </ul> <p><b>SAii Lagoon Maldives, Curio Collection by Hilton:</b></p> <ul style="list-style-type: none"> <li>+ Miss Olive Oyl (3-dishes from a la carte menu, 1 appetizer, 1 main course and 1 dessert)</li> <li>+ SAii Pool Bar (3-dishes from a la carte menu, 1 appetizer, 1 main course and 1 dessert)</li> <li>+ Mr. Tomyam (3-dishes from a la carte menu, 1 appetizer, 1 main course and 1 dessert)</li> <li>+ Terra &amp; Mar (3-dishes from a la carte menu, 1 appetizer, 1 main course and 1 dessert)</li> </ul> <p><b>The Marina @ CROSSROADS Maldives:</b></p> <ul style="list-style-type: none"> <li>+ Hard Rock Cafe (3-dishes from a la carte menu, 1 appetizer, 1 main course and 1 dessert)</li> <li>+ Kebab &amp; Kurry (3-dishes from a la carte menu, 1 appetizer, 1 main course and 1 dessert)</li> <li>+ Kinkao Thai Bistro (3-dishes from a la carte menu, 1 appetizer, 1 main course and 1 dessert)</li> <li>+ Jiao Wu (3-dishes from a la carte menu, 1 appetizer, 1 main course and 1 dessert)</li> <li>+ ** Ministry of Crab (dinner only)</li> <li>+ ** Nihonbashi Blue (dinner only)</li> <li>+ ** Carne Diem Grill (dinner only)</li> </ul> <p>Denotes:<br/> <b>**Each adult will receive a US\$50 dining credit, while children booked on a meal plan will receive a US\$25 dining credit, both applicable to the final bill.</b></p> <p><b>** Children who are not booked on a meal plan can eat for free from the kids' menu, however, the US\$25 dining credit will not apply in this case.</b></p> <p><b>** The following outlets are not included in the ALL INCLUSIVE or PREMIUM ALL INCLUSIVE beverages however; guest may use their dining credit for beverages. Dining credit is applicable on selected items in the menu.</b></p> |

#### General Terms & Conditions:

- Strictly NO split meal, all bookings must have ONE meal plan for all pax for all related bookings, per stay.
  - Example family has 3 rooms, you cannot have 1 on All Inclusive and 2 on Full Board.
  - Drinks and food items should not be shared with a guest who has not opted for any meal package. Any drinks or food items, offered to a non meal plan guest will be charged as per consumption.
- The guests must be on the same meal plan basis for the duration of their entire stay.
- Applicable meal plan entitlements will be served based on the operational hours of the venue.
- Children up to 5.99 years dines complimentary based on Kid's menu during meal period.
- Children from 6 to 11.99 years old has **two options** for dining.
  - Complimentary meal based on Kid's Menu during meal period only.
  - Pays 50% of adult meal plan as a supplement to enjoy standard adult meal plan inclusion.
- Children 12 years old and above shall be considered adults for the purposes of all reservations and payment.
- Alcoholic beverages will only be served to guest aged 18 and over.
- No pork items will be included in the meal plans.
- Free kid meals are available at Ministry of Crab, Nihonbashi Blue and Carne Diem Grill.
- Unused meal package benefits are not refundable or non-extendable to the next day and cannot be exchanged for cash or other services.
- In Room Dining, minibar, destination dining and special events are not included in any meal plan, unless expressly stated.



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- Venue change during same meal periods is not permitted. Meals included with each meal plan are to be enjoyed in one venue. If a guest chooses to have a second meal at another venue, this second meal will incur additional charges.
- All venues mentioned above are indicative of the available options. The resort reserves the right to change venues without notice. Children under 12 eat for free from the kids' menu only when dining with their parents.
- Unused meal package benefits are not refundable or non-extendable to the next day and cannot be exchanged for cash or other services.

### ALL INCLUSIVE Terms & Conditions:

- Alcoholic beverages will only be served to guest aged 18 and over.
- **Teenagers between the ages of 12 and 17.99 can avail Full Board Plus Meal Plan at US\$185 per teenager per day when their parents are booked on the All-Inclusive package**
- The beverage package is applicable in all bars and restaurants EXCEPT In Villa Dining, Mini Bar and The Marina outlets marked with \*\* two stars.
- NO beverage vouchers will be issued to the guest.
- Take away beverages from outlets to the rooms is NOT allowed.
- Only selected beverages which are listed in the package will be offered.
- Any other beverages which are not included in the packages and consumed extra, will be charged directly to the guest.
- All the listed beverages will be served only by glasses and not by bottles, available during the opening hours of the bars and restaurants.
- If the guests will show the signs of intoxication or misbehave, the restaurant and bar managers have authority to stop serving alcohol to such guest.
- On non-availability of particular listed beverage, an alternate beverage will be offered by hotel team.
- The guests who choose beverage package cannot offer any of the drinks to his friends or others if they are not part of the package.
- Special discounts will be applied only for non promotional items.

### Premium All Inclusive Terms & Conditions:

- Is an optional supplement and is in addition to the base meal plan of the hotel.
- The beverage package is applicable in all bars and restaurants from two resorts and Marina outlets (Hard Rock Hotel Maldives and SAii Lagoon Maldives, Curio Collection by Hilton)
- Families, guests sharing rooms or travelling as a "party" must always be book under the same package conditions, this also stands for teenagers.
- Free flow Premium and House Pouring Alcoholic beverages from selected menu, which are listed in the package will be offered
- All drink and food items are for personal consumption only, and must be ordered one at a time. The drinks and food items may not be shared with a person who has not opted for the Premium All Inclusive package, if offered it will be charged at list price.
- On non-availability of particular listed beverage, an alternate beverage will be offered by hotel team.
- No take away orders from restaurants can be made on Premium All Inclusive package.
- All registered adults (including teenagers) on Premium All Inclusive Meal Plan, must be quoted on full rate.

**NOTE: ALL the benefits included in regular All Inclusive package are a part of Premium All Inclusive package.**

### BABYSITTER

Babysitter service is based on availability and requires a reservation prior arrival. Please note that there is an hourly fee for this service. For more information, please contact our Reservations team [rsvn@hrhmaldives.com](mailto:rsvn@hrhmaldives.com).

### WEDDING AT HARD ROCK

Hard Rock is about going all the way, in music, in life and in love. However, or with whomever it is that you find your balance. Loud or quiet, barefoot in the sand or stilettos in the ballroom, there's no wrong way to celebrate here. From intimate to outrageous celebrations, we'll set the stage for your family & friends to honor you. However, you express your love, do it to the fullest, we can put together the right notes to create a wedding that will have you and your guests cheering for an encore. Talk to our team for more information, refer to our brand website to access all our special offers.

### DINING BY DESIGN

Experience our romantic candle lit dinner on the beach watching the sunset or on our sandbank, on the pool deck or in your own villa, contact our team (email to [jvd.supervisor@hrhmaldives.com](mailto:jvd.supervisor@hrhmaldives.com)) to find out more options. Refer to our brand website to access all our special offers. We only provide one reservation per setting to enable us to take personal care of your guests and to give them the privacy that is essential to the special evening, hence the booking must be made more than 48 hours in advance.

**New Year Gala Dinner supplement is not compulsory and should clients wish to join the dinner below supplements are applicable.**

| New Year Gala Dinner Supplement                                                                                                 | Adult | Child 6 - 11.99 |
|---------------------------------------------------------------------------------------------------------------------------------|-------|-----------------|
| Upgrade from Bed & Breakfast to New Year's Eve Supplement                                                                       | 210   | 105             |
| Upgrade from Half Board, Full Board, <b>Full Board Plus</b> , All Inclusive, Premium All Inclusive to New Year's Eve Supplement | 105   | 53              |

- Children below 5.99 are complimentary.
- Children 12 years old and above shall be considered adults for the purposes of all reservations and payment.
- New Year Gala Dinner reservations can be booked directly at the restaurant. If a guest wishes to book directly, this will be charged to their personal account.
- All rates and prices indicated above are Net inclusive of tax, service charge and non-commissionable. Rates shown applicable for booking via Wholesaler only.



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### OFFERS

| DATES VALID                                           | OFFER                               | DETAILS                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
|-------------------------------------------------------|-------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| All year round                                        | Teens Offer - Meal                  | <ul style="list-style-type: none"> <li>Teenagers between the ages of 12 and 17.99 can avail Full Board Plus supplement at US\$185 per person per day when their parents are booked on the All-Inclusive package.</li> </ul>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
| Stays from:<br>01 May 2027 –<br>31 October 2027       | Early Bird –<br>Shoulder            | <ul style="list-style-type: none"> <li><b>Book by 31 July 2027</b> for stays between 01 May 2027 and 30 September 2027 to receive a <b>35% discount</b> on the above room rates.</li> <li><b>Book by 31 July 2027</b> for stays between 01 - 31 October 2027 to receive a <b>35% discount on Shoulder Season rates</b> instead of High Season rates.</li> <li>Early Bird Offer is applicable to both room rates and extra person supplements only.</li> <li>Early Bird Offer is combinable with the following meal plan upgrades, including for extra persons: <ul style="list-style-type: none"> <li>Book Half Board and free upgrade to Full Board.</li> <li>Book Full Board and free upgrade to Full Board Plus.</li> <li>Book Full Board Plus and free upgrade to All Inclusive.</li> </ul> </li> <li>The Early Bird Offer is combinable with complimentary combined return speedboat transfers for all guests.</li> <li>Early Bird Offer is combinable with the Honeymoon/Anniversary Offer and the Long Stay Offer.</li> <li>The booking must clearly indicate the reservation date.</li> <li>All bookings are subject to stop sale.</li> </ul> |
| Stays from:<br>01 November 2027 – 25<br>December 2027 | Early Bird –<br>High 2027           | <ul style="list-style-type: none"> <li><b>Book by 31 July 2027</b> for stays between 01 November 2027 and 25 December 2027 to receive a <b>30% discount</b> on the above room rates.</li> <li>Early Bird Offer is applicable to both room rates and extra person supplements only.</li> <li>Early Bird Offer is combinable with the following meal plan upgrades, including for extra persons: <ul style="list-style-type: none"> <li>Book Half Board and free upgrade to Full Board.</li> <li>Book Full Board and free upgrade to Full Board Plus.</li> <li>Book Full Board Plus and free upgrade to All Inclusive.</li> </ul> </li> <li>The Early Bird Offer is combinable with complimentary combined return speedboat transfers for all guests.</li> <li>Early Bird Offer is combinable with the Honeymoon/Anniversary Offer and the Long Stay Offer.</li> <li>The booking must clearly indicate the reservation date.</li> <li>All bookings are subject to stop sale.</li> </ul>                                                                                                                                                                 |
| Stays from:<br>26 December 2027 – 30<br>April 2028    | Early Bird –<br>Peak & High<br>2028 | <ul style="list-style-type: none"> <li><b>Book by 30 September 2027</b> for stays between 26 December 2027 and 30 April 2028, receive a <b>20% discount</b> from the above room rates.</li> <li>Early Bird offer is applicable for room rates, extra person supplement, meal plan supplements and Speedboat Transfers for all guests. It is not applicable for any other supplements.</li> <li>Early Bird offer is combinable with Honeymoon/ Anniversary and Long Stay offer.</li> <li>The booking must clearly indicate the reservation date.</li> <li>All bookings are subject to stop sale.</li> </ul>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
| All year round                                        | Honeymoon<br>Anniversary            | <ul style="list-style-type: none"> <li>Honeymoon/Anniversary set up in room or villa.</li> <li>One (1) bottle of wine.</li> <li>Photocopy of marriage certificate or similar required upon checking in for Honeymoon/Anniversary.</li> <li>Honeymoon/Anniversary offer is combinable with early bird and long stay offer.</li> <li>Complimentary Private Beach Dinner once during the stay for minimum 5 nights stay and above.</li> </ul>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
| All year round                                        | Birthday                            | <ul style="list-style-type: none"> <li>Birthday set up in room or villa.</li> <li>One (1) bottle of wine.</li> <li>One (1) cake.</li> <li>Birthday offer is combinable with early bird and long stay offer.</li> </ul>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
| All year round                                        | Long Stay                           | <ul style="list-style-type: none"> <li><b>Minimum SEVEN (7) nights:</b> Receive <b>USD 250 Resort Credit</b> per room, once during the stay.</li> <li><b>Minimum NINE (9) nights:</b> Receive <b>USD 350 Resort Credit</b> per room, once during the stay.</li> <li>The Long Stay Offer is combinable with the Early Bird Offer (EBO) unless expressly stated otherwise.</li> <li>Resort Credit is issued once per room per stay and is subject to the resort's Resort Credit terms and conditions.</li> </ul>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |



## MALDIVES

### CANCELLATION AND DEPOSIT POLICY

| SHOULDER SEASON                             | CANCELLATION TERMS AND DEPOSIT POLICIES |
|---------------------------------------------|-----------------------------------------|
| 15 days or more prior to arrival            | No cancellation fee                     |
| 8 - 14 days prior to arrival                | 50% of the full stay                    |
| 0 - 7 days prior to arrival (incl. no show) | 100% of the full stay                   |
| HIGH SEASON                                 | CANCELLATION TERMS AND DEPOSIT POLICIES |
| 31 days or more prior to arrival            | No cancellation fee                     |
| 15-30 days prior to arrival                 | 50% of the full stay                    |
| 0-14 days prior to arrival (incl. no show)  | 100% of the full stay                   |
| PEAK SEASON                                 | CANCELLATION TERMS AND DEPOSIT POLICIES |
| 61 days or more prior to arrival            | No cancellation fee                     |
| 46-60 days prior to arrival                 | 50% of the full stay                    |
| 0-45 days prior to arrival (incl. no show)  | 100% of the full stay                   |

#### NOTES:

- If reservation overlaps different seasons, the higher season cancellation terms and policies apply.
- We accept only USD payments.
- Last minute bookings to be paid via payment link to avoid any hassle for guest as cheque and TT copies cannot be verified and shall not be accepted if shared on the day of guest's arrival.
- SHOULDER SEASON: Resort will collect 100% payment 15 days prior to arrival to guarantee the reservation.
- HIGH SEASON: Resort will collect 100% payment 30 days prior to arrival to guarantee the reservation.
- PEAK SEASON: Resort will collect 100% payment 60 days prior to arrival to guarantee the reservation.
- All non-guaranteed bookings will automatically be released when the hotel is fully booked. Cancellation and/or amendments will NOT be accepted unless mentioned by writing.
- In the unlikely event where the Agent has failed to pay before the guest's arrival, the resort reserves the full right to deny the acceptance of the guest on the resort and transfers shall not be arranged until payment has been realized in resort's bank account.
- Room reservations are non-refundable, non-cancellable and non-changeable, you are wholly responsible for charges related to any and all room reservations. No refunds will be provided in the event of a cancellation or change in date.
- No-shows must be paid without reliance on vouchers due to the inability of the client to present the voucher. Should you fail to pay all room reservation charges, Hotel may cancel your billing privileges and/or this Agreement, at Hotel's sole discretion, without any obligation or liability whatsoever. No refunds will be provided for early departure.

### PAYMENT TERMS

- If the Wholesaler fails to give the required notice, or if the booking (or any part of the booking) fails to arrive as scheduled, the Hotel reserves the right to charge a late cancellation or no-show fee equivalent to the contracted rate as per the cancellation policy.
- The late cancellation or no-show fee shall, at the discretion of the Hotel, be deducted or set-off against the Wholesaler's pre-payment or charged directly to the Wholesaler and must be paid within 30 days of the date of the relevant invoice. Disputing the invoice for No Show charges shall be construed as a Breach of this Agreement.
- All reservations are payable / guaranteed via credit card at time of booking, unless credit facilities are in place.
- In the event of payment arrangements not confirmed in advance, the Hotel reserves the right to collect such payment from the guest directly upon check-in at the Best Available Rate.
- Where a partner arranges payment to the Hotel through a third party, the Wholesaler shall remain responsible for such accounts until full payment has been received by the Hotel.
- The Wholesaler agrees to assist with any and all damages incurred as a result of the failure of the guest to pay for the Hotel's service.
- The Hotel reserves the right to request a deposit for any booking.

### CREDIT

The Resort's credit manager will provide credit terms under a separate cover. Failure to comply with credit terms may result in suspension of the Resort's obligations of this agreement.



## MALDIVES

### BILLING

If credit has been approved, the Wholesaler will be required to settle accounts due to the Resort within 30 days of the invoice date. Should the Wholesaler fail to settle the accounts within the credit period, the Resort reserves right to withdraw credit facility. The Resort also reserves the right to refuse any new bookings on a credit basis until all outstanding accounts are settled. **Invoices unpaid after the credit period will attract interest at 1.5% per month.**

If no credit facilities are agreed, without prejudice to anything herein, the Hotel reserves the right to demand full payment 14 days prior to arrival for all seasons.

Unless credit facilities have been established, by means of a Bank Guarantee, Floating Deposit or such other security acceptable to the Resort, the amount and all other details of this must be discussed and agreed between the Wholesaler and the Resort.

|                  |                                                                                                      |
|------------------|------------------------------------------------------------------------------------------------------|
| Name             | : HARD ROCK HOTEL MALDIVES                                                                           |
| A/C              | : 7730-000261-461                                                                                    |
| Bank             | : Bank of Maldives PLC                                                                               |
| Swift Code       | : MALBMVMV                                                                                           |
| Account Currency | : USD                                                                                                |
| Bank Address     | : Bank of Maldives PLC, Head Office, No.11, Boduthakurufaanu Magu, Male' 20094, Republic of Maldives |

By signing of the Agreement, the Resort shall not be held liable or responsible for failure to execute arrangements specified herein directly or indirectly occurred by or through or in consequence of war, strikes, riots and Acts of God or conditions beyond the control of the Resort.

Disputes action or other matters arising. It is expressly agreed and declared that the proper law of the Agreement is the Law of Maldives and that any disputes, action or other matters arising there under shall be determined in a court of Law in Maldives and in Accordance with the laws and procedures of Maldives and under any and all circumstances.

The Resort reserves the right at any time by giving notice in writing to cancel this Agreement should the Wholesaler fail to fulfill the above terms and conditions.

**METHOD OF PAYMENT : PRE-PAYMENT**



**MALDIVES**

**ACCEPTANCE**

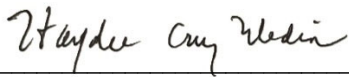
If the above details meet with your approval, please sign a copy of this agreement and stamp an official company stamp and return to email. In case this agreement is not signed and/or stamped by you and there is no written letter of refusal on terms and conditions of this agreement within **7 days** after receipt of this agreement, this agreement will forthwith have full force and effect from lapse of such period.

The Hotel reserves the right to revise any rates, offer, terms and conditions or any other details set forth herein at its discretion, if deemed necessary.

**AUTHORIZED SIGNATURES:**

\_\_\_\_\_  
Mr. Aarish Khan  
Chief Commercial Officer  
TBO Tek Limited (Island Hopper)

\_\_\_\_\_  
Date



06.09.2026

\_\_\_\_\_  
Haydee Cruz  
Cluster Director of Sales & Marketing  
**CROSSROADS Maldives**

\_\_\_\_\_  
Date



06.09.2026

\_\_\_\_\_  
Frederic Lebegue  
General Manager  
**Hard Rock Hotel Maldives**

\_\_\_\_\_  
Date



## MALDIVES

### DEFINITIONS

For purposes of these Terms and Conditions:

1. "Agents" means others to whom you make Program Rates available to enable them to make guest reservations for Resort Rooms on behalf of Resort guests.
2. "Best Available Rate" means the lowest of the following rates for which a customer qualifies: (a) the lowest rate that each Resort makes available to the general public; or (b) the lowest rate for which a particular customer qualifies as a result of his or her membership in a particular segment of the general public.
3. "Dynamic Rates" means real time selling rates through an automated process that enables the sale of the room at the Best Available Rate.
4. "Resort" means any Hard Rock Hotel Maldives branded product.
5. "Resort-Supplied Rates" means any rates committed to you by any Resort for use in making guest reservations on behalf of such Resort that are, at the time they are committed to you, lower than the Best Available Rate.
6. "Resort Rooms" means guest rooms at any Hard Rock Hotel Maldives, branded lodging product.
7. "Package Rates" means the aggregate price to a Resort guest at which you offer a Packaged Room together with the required additional significant travel component.
8. "**Packaged Rooms**" means Resort Rooms that are ultimately sold to consumers as part of a packaged travel product in which the Resort Room is sold as a single product at a single price in combination with an additional significant travel component, such as airfare (but not breakfast or other de minimis items or services provided by the Resort), with a value equal to at least twenty percent (20%) of the value of the room rate.
9. "Program Fee" means the difference, if any, between the Program Rate and the rate ultimately paid by the Resort guest.
10. "Program Rates" means the Standard Net Rates and the Resort-Supplied Rates, collectively.
11. "Standard Net Rates" means the rates provided to you via the enclosed contract for use in making guest reservations on behalf of any Resort.
12. "Unpackaged Rooms" means Resort Rooms that are not packaged.
13. In the event of a hotel buyout, hotel reserves the right to remove allocation over effected dates.
14. The Resort reserves the right to amend or retract contracted wholesale static FIT rates at any time.



## **MALDIVES**

### **ANNEX – ROOM CHART**

- For extra person in the room, existing sofa/day bed will be converted into an extra bed. Rollaway beds are subject to availability upon request.
- The Hotel provides complimentary baby cots/cribs (subject to availability), on request.
- Bedding requirements, offered upon request, subject to availability at the time of check-in.
- Bedding requirements, must be stated at the time of booking however will remain subject to availability



## MALDIVES

### Dream Islands Development 2 Private Limited owner of Hard Rock Hotel Maldives TERMS AND CONDITIONS OF WHOLESALE AGREEMENT

#### FREE SELL

You may book rooms until such time as resort notifies you to cease booking rooms. All rooms must be booked and reported to resort daily on the day of booking by email at the contact details set forth below under reservations. **Silver Family Pool Suite, Gold Beach Villa, Rock Royalty Overwater Pool Villa (2-Bedroom) and Rock Star Villa (2-Bedroom)** is excluded from free sale. The categories are sold on demand only and not part of free sale.

#### NO NAME CHANGE

Once a room reservation is confirmed, the resort does not permit a name change to the reservation. In case of any changes to a guest booking where the confirmed guest is no longer travelling and where the wholesaler/tour operator wishes to replace said booking with another guest, the wholesaler/tour operator must first cancel the existing room reservation and then place a new booking. All cancelled reservations will be treated in accordance to the resort's cancellation policy.

#### RATES AND YIELDABILITY

Yieldable Net Rates are current as of the date of the Agreement and subject to change. Rates and availability are subject to Resort's blackout dates, available upon request. The Resort reserves the right to increase or decrease rates. The Resort reserves the right to increase, decrease or cease making guest villas available at any time; this applies to free sell, on request, or any other method that the Resort chooses to make villas available to you, your Channels or your B2B contractors. Prior notice will be given to you of any rate or availability changes. Any reservation(s) made prior to a rate or availability change as detailed must be reported and confirmed to the Resort within 24 hours of the rate of availability change notification. The Resort has no obligation to honor any reservation(s) that are reported outside the 24-hour timeframe. Withholding booked villas, holding villas without a confirmed booking, or other such behavior to take advantage of rate or availability changes will be considered a material breach of this Agreement which, without limiting any of Resort's other rights, shall entitle the Resort to terminate this Agreement. Should any booking fall over 2 seasons, a split season rate offering is permitted.

#### CLOSE-OUT & STOP SELL PERIODS

All rooms **except for Silver Family Pool Suite, Gold Beach Villa, Rock Royalty Overwater Pool Villa (2-Bedroom) and Rock Star Villa (2-Bedroom)** are FREE SALE based on SELL AND REPORT, subject to CLOSE-OUT DATES sent by our team. The Hotel reserves the right to update with close out dates or stop sell as deemed necessary. Please update us your inventory contact details for us to ensure that you receive notification accordingly.

#### RESERVATIONS

Net rates and room availability are subject to confirmation at time of booking. All booking requests should be sent via email directly to reservations office of the Hotel. Bookings will only be confirmed once a confirmation number has been issued. The Hotel will refrain from verbal confirmations over the phone.

#### BOOKING PROCEDURE

The Wholesaler agrees to provide written orders for bookings including indication of payment method before Guests' arrivals. Published rates will be charged direct to the guest in absence of written confirmation from the Operator.

Should the guest request a higher room category to the one initially booked, then a relevant surcharge will be applied directly to the guest at prevailing Best Available Rates.

#### DOUBLE BOOKINGS / DUPLICATE

In case that the Hotel has sufficient reasons to believe that a potential double booking may occur, due to an existing booking with same or similar booking details (name, number of rooms and dates) via a third-party source, the Hotel may reject any new booking requests with the same booking details, until the existing booking via a third party has been cancelled.

#### TRADING TERMS

Application of contract rates for additional bookings over and above the contract room allocation where applicable will be at the Hotel's discretion, based on booking status and written confirmation by the Hotel prior to arrival. The Hotel reserves its right to charge additional bookings at published rates. Supplements or close out dates may be applicable during pre-determined periods, which will be advised prior to dates applicable.

The resort reserves the right to issue stop sales when there is limited inventory and balance rooms/villas will be sold on the Best Available Rate (brand.com). Wholesaler partners will receive 10% commission on the Best Available Rate.

Room rates are applicable on the Wholesaler's account only. Should the guest be paying on his/her own account, regular published rates will be applied. The aforesaid special contract rates are offered to Wholesaler expressly and solely for wholesale use and must be "bundled" with another travel component, such as air fare or tour package.

#### CROSS SIGNING

Cross signing facilities are available between Hard Rock Hotel Maldives and SAii Lagoon Resort, Curio Collection by Hilton, in respect of all chargeable facilities and services available at the prevailing applicable rates.

#### VOUCHERS

If the Resort approves credit terms, the Wholesaler agrees to provide the Resort with a sample voucher for FIT bookings for reference.

#### BROCHURES

The Wholesaler will feature the Resort in its tour program (s) and brochure (s) as an upscale Resort and include a photograph of the Resort when appropriate. The Resort will provide the Wholesaler with such pictures, descriptive text and Resort logos to enable the Wholesaler to advertise to the market and sell accommodation as part of a Package/Program. The Wholesaler must ensure that the information included by it or on its behalf in any brochure or marketing material is accurate and updated as may be appropriate from time to time and approved by The Resort prior to publication and shall indemnify The Resort and in respect of claims arising there from.

The Wholesaler shall at its own expense provide the Resort with the Package/Programme information and a copy of any brochure or marketing literature produced by it or on its behalf featuring The Resort, as soon as it is available.

#### EARLY DEPARTURE

In the event a guest who has reserved a room checks-out prior to the guest's reserved check-out date, the Hotel will charge the entire stay and no refunds will be given.

#### NO SHOWS

Any room reservations confirmed and guaranteed by the agent and not claimed as per guarantee on the day of arrival will be charged in full with no refunds.



## MALDIVES

### OVERBOOKING

The Hotel reserves the right to overbook, which may result in some guests being relocated. In this event, the Hotel will secure, and the client agrees to accept, alternative accommodation of at least an equal standard but is not liable to pay compensation to the Wholesaler or any individual Resort guests.

### CHECK-IN AND CHECK-OUT TIME

Check-in time is 14:00, an overnight rate will be charged to guarantee check-in before 14:00 hours. Check-out time is 12:00 noon on the day of departure. Late checkout is subject to availability on the day of check out and the following charges will be applied: prior to 18:00 a charge of 50% of the room rate and thereafter a full night charge paid by the guest directly to the hotel.

### AMENDMENTS

Notwithstanding anything in this Agreement, the Hotel may at any time and from time to time amend, vary and/or supplement the terms of the Agreement by giving at least 14 days' written notice to the Wholesaler prior to the date on which such amendment, variation and/or supplement is to take effect and such amendment, variation and/or supplement shall be valid and binding against the Wholesaler.

Amendments to this agreement shall only be valid if made in writing and signed by representatives from both the Resort and the Wholesaler. The waiver of any terms of this agreement on one particular occasion shall not be deemed as a waiver of such terms for any future occasions. Any such waivers are at the discretion of the Resort.

### FORCE MAJEURE

Neither party will be held responsible for failure to execute obligations specified herein directly or indirectly occasioned by or through or in consequence of war, change of statutes of the government, strikes, riots and acts of God or conditions beyond the control of either party.

### INTERNET KEYWORD MARKETING

The Wholesaler shall not bid on or purchase internet placement rights for the Marks or, except as stated above, use any of the Marks in any manner or in any of its advertising, including but not limited to Internet and web advertising, without the express written consent of the Resort.

### BRAND LOYALTY MARKETING AND ONWARD DISTRIBUTION

The Wholesaler shall not target, solicit, or otherwise make use of loyal customers (i.e. customers expressing a preference for and Hard Rock Hotels brand). Unpublished rates are offered by Resort expressly and solely for provider use. Under no circumstances are rates in this contract to be published on the Internet or to the public without an agreed minimum "sell" rate and the express written permission of the Resort. The offering or distribution of unpublished rates or any other data or information provided by Resort hereunder, through any internet site or global distribution system booking sites, is expressly forbidden, except as Wholesaler shall notify the Resort and the Resort shall approve such redistribution in writing.

### UNITY BY HARD ROCK (LOYALTY PROGRAM)

The Wholesaler and/or its customers will not be eligible for Hard Rock loyalty program based upon any confirmed reservation based upon this agreement. It will be the Wholesaler's responsibility to make this known to all booking parties.

### PREDATORY ADVERTISING

The Wholesaler shall not use, and shall prohibit all web sites within its control from using, any predatory advertising methods designed to generate traffic from Hard Rock Hotel Maldives sites, or any other sites that exclusively promote Hard Rock Hotel Maldives, for which the Wholesaler has no contractual rights for the online promotion of any products or services other than Hard Rock Hotel Maldives.

A predatory advertising method is an advertising method that creates or overlays links or banners on web sites, spawns' browser window, or utilizes any other method to generate traffic from a web site without that web site owner's knowledge, permission, and participation.

### USE OF WHOLESALER RATE

"Wholesaler" agrees to the following with respect to the Hard Rock Hotel Maldives Supplied Rates:

"Wholesale Agent" will make best efforts to ensure that all guest reservations with respect to Unpackaged Rooms (whether made by you or your Agents) are made at rates that are at least equal to the Best Available Rate for such Resort Rooms at the time of sale to such Resort guest, and you will not knowingly permit reservations to be made that do not comply with this standard.

Within 24 hours of receiving notice from the Hard Rock Hotel Maldives that you are responsible for guest reservations that do not comply with these Terms and Conditions, you will take corrective action to ensure that no further non-compliant reservations are made.

"Wholesale Agent" will not offer, or permit others to offer, rates for consumer reservations for Unpackaged Rooms through the Internet, nor will you permit rates associated with unpackaged rooms to be disclosed on any Internet site.

"Wholesale Agent" will ensure that Program Rates are not disclosed to the Resort guest or anyone else.

If "Wholesale Agent" makes Program Rates available to your Agents, you will ensure compliance by both you and such Agents with (a) all applicable laws; and (b) these Terms and Conditions.

"Wholesale Agent" will not advertise that you have the "lowest prices available" (or make any similar claim that implies that you offer discounts for Unpackaged Rooms) with respect to any Resort's inventory.

With respect to each paid Resort guest stay that results from your use of Program Rates, you agree that your retention of the Program Fee will be the sole compensation to which you will be entitled with respect to such stay.

Each Resort, and not you, will bear the full risk of loss with respect to the Resort rooms, including the risk of unsold inventory. Consistent with the foregoing, you will ensure that your refund policy is no more lenient than the refund policy of the Resort on whose behalf you are making guest reservations, meaning that there will never be a scenario in which a guest would qualify for a refund under your policy but would not qualify for a refund under the Resort's policy.

"Wholesale Agent" agrees that in making guest reservations for Resort Rooms, and/or in making Program Rates available to Agents for making reservations on your behalf for Resort Rooms, you will at all times act as an agent of the owner of the Resort in question.

### SUB SELLING

The Wholesaler strictly undertakes (a) not to sell or assign any room/meal reservation or allocation to any third party or disclose the rates quoted by the Hotel to any party whatsoever, whether directly or indirectly (including, without limitation, through print, the internet and other web channels) and (b) not to utilize any room/meal reservation or allocation other than for packaged booking(s)/customer(s) (which package shall include flight, meals and accommodation) directly arranged or led by the Wholesaler. Should a room only rate need to be sold, the rates stipulated in this agreement will not be applicable. Instead, the hotel's "Best Available Rates" will apply. The hotel will accord a 20% discount on the "Best Available Rates" which in turn will have to be marked up by the Wholesaler by at least 25%.

### RENOVATION

The Hotel reserves the right, upon giving reasonable notice to the Wholesaler (save for force majeure or events or circumstances beyond the control of the Hotel), to close any part of its facilities and to carry out such repairs, renovation/s and upgrades to the Hotel from time to time and at any time as it deems fit in its absolute discretion.



## **MALDIVES**

### **WHOLESALE NOT AN AGENT**

The Wholesaler is not authorized and shall not make any representation, warranty or undertaking on behalf of or in respect of the Hotel without the prior written consent of the Hotel. Save as explicitly provided for in this Agreement, the Wholesaler is not an agent of and shall not enter into any contract or arrangement on behalf of the Hotel.

### **CONFIDENTIALITY**

All information contained in this Agreement is private and confidential and may not be disclosed to third parties for whatever reason or purpose. For the avoidance of doubt, if the rates contracted herein are offered, sold or made available to any party without the prior written consent of the Hotel, this Agreement will automatically be terminated without prejudice to the Hotel's rights against the Wholesaler.

### **ASSIGNMENT**

The Wholesaler may not assign or transfer any of its rights and obligations under this Agreement.

### **TERMINATION**

This agreement can be terminated by either party, without penalty, for any reason upon thirty days' prior written notification to the other party. Termination of this Agreement shall not extinguish the rights or obligations of the parties hereunder with respect to indemnification, trademarks, ownership and disposition of information, confidentiality, and accounting.

The Resort shall have the absolute right at any time by giving notice in writing to the Operator to cancel this Agreement forthwith including current and future reservations on the occurrence of any of the following events:

Non-compliance with agreed trading terms: If the Wholesaler enters into bankruptcy or liquidation whether compulsory or voluntarily (other than for the purposes of amalgamation or reconstruction) or compounds with its or their creditors or takes or suffers any similar action in consequence of debt or is served with notice of or relating to bankruptcy or liquidation.

### **OTHER TERMS AND CONDITIONS**

This Agreement is subject to the other Terms and Conditions outlined below:

Contract rates are extended on an understanding that the Hard Rock Hotel Maldives will be featured in promotional brochure both pictorially and editorially. Importantly, rates must be packaged with at least one other travel services listed herewith, air-ticket, transportation and meals (exception of breakfast).

Under no circumstances are the contracted rates to be published on any internet website without the express permission of the Resort. (i.e. contract rates which are not packaged are not permitted to be displayed in any web-site).